

20SMCV01925 20SMCV01925

County: los-angeles

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Case Number: 20SMCV01925 Hearing Date: July 22, 2026 Dept: M

CASE NAME: Dry, et al.,

v. Dell, et al.

CASE NO.: 20SMCV01925

MOTION: Motion

for Attorney's Fees

HEARING DATE: 7/22/2026

Legal

Standard

With respect to attorney fees

and costs, unless they are specifically provided for by statute (e.g., CCP §§ 1032, et seq.), the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties. (CCP § 1021.) The prevailing party on a contract, which specifically provides for attorney fees and costs incurred to enforce the agreement, is entitled to reasonable attorney fees in addition to other costs. (Civ. Code § 1717(a); CCP §§ 1032, 1033.5(a)(10)(A).) The court, upon notice and motion by a party, shall determine the prevailing party and shall fix, as an element of the costs of suit, the reasonable attorney fees. (Civ. Code § 1717(a), (b).) Any notice of motion to claim attorney fees as an element of costs under shall be served and filed before or at the same time the memorandum of costs is served and filed; if only attorney fees are claimed as costs, the notice of motion shall be served and filed within the time specified in CRC 3.1700 for filing a memorandum of costs. (CRC 3.1702; Gunlock Corp. v. Walk on Water, Inc.

(1993) 15 Cal.App.4th 1301, 1303, fn. 1.)

"It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion. [Citation.]" (Melnik v. Robledo (1976) 64 Cal.App.3d 618, 623 624.) The fee setting inquiry in California ordinarily "begins with the 'lodestar' [method], i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) "[A] computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." (Margolin v. Reg'l Planning Comm'n (1982) 134 Cal.App.3d 999, 1004.) The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (See Serrano v. Priest (1977) 20 Cal.3d 25, 49 [discussing factors relevant to proper attorneys' fees award].) Such an approach anchors the trial court's analysis to an objective determination of the value of the attorney's services, ensuring that the amount awarded is not arbitrary. (Id. at 48, fn. 23.) The factors considered in determining the modification of the lodestar include "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award." (Mountjoy v. Bank of Am. (2016) 245 Cal.App.4th 266, 271.)

In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. (Premier Medical Management Systems, Inc. v. California Ins. Guaranty Assoc. (2008) 163 Cal.App.4th 550, 564.) General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. (Ibid.)

Analysis

Defendants Jack Dell, 1025 Ocean Avenue, Ltd., L.P. and American Alliance Capital Group, LLC move for an award of attorney's fees against Plaintiffs Richman Bry, Jr. and Riviera Capital Group, LLC in the amount of \$174,487.00, and for costs of \$7,240.87 as set forth in the

Memorandum of Costs.

Defendants note that on February

26, 2026, the Court awarded \$12,980.00 in sanctions against Plaintiffs, which are not sought in the instant motion for attorneys' fees. Defendants request that the ultimate award here also reflect that amount previously awarded.

Evidentiary Issues

Defendants' objections to the Speiser

Declaration are SUSTAINED as to no. 1-4 (relevance, hearsay). Defendants' objection to the Chodos declaration is SUSTAINED (relevance).

Discussion

There is no reasonable dispute that

Defendants are the prevailing parties in this action, since they received a full dismissal on the contract claims. Defendants are entitled to reasonable attorneys' fees incurred in connection with this action, including on proceedings where it did not prevail as to the relief requested. (Civ. Code § 1717; see *Frog Creek Partners, LLC v. Vance Brown, Inc.* (2012) 206 Cal.App.4th 515, 546 ["a party who ultimately prevails on a contract action is entitled to all of its fees, including fees incurred during the lawsuit in proceedings where it did not prevail."].)

Defendants demonstrate an initial

lodestar of \$174,487.00 which was incurred to obtain Defendants' litigation objective of a dismissal of Plaintiffs' claims. (Gold Decl., ¶¶ 19, 26, Ex. N.) The lodestar is supported by verified, contemporaneous fee records. (Id.) Counsel spent over 303.1 hours litigating this action. Defendants demonstrate that their counsel's fee rates are reasonable when compared with similarly situated attorneys with similar experience. (Id., ¶¶ 22-25, Exs. O [Laffey Matrix], P [2025 Judicial Salary Plan], Q [2024 Judicial Salary Plan].) Counsel set forth their training, education and experience. (Id., ¶¶ 18-20, 25.) The hourly rates charged by ECJ attorneys for the work conducted in connection with this action ranges from \$435 per hour (for Elliot Z. Chen, an attorney with four years' experience in 2021) to \$800 per hour (for Gold, a partner with over 35 years' experience). (Id.) The rates increased progressively over the six years of litigation. (Id.) Counsel shows that their rates are below those comparable hourly rates for attorneys' with similar experience and in comparable markets.

(Id., ¶¶ 25-26, Ex. N.) This evidence meets Defendants' prima facie showing that under the lodestar method. Plaintiffs therefore have the burden to make specific objections that the sought fees are excessive, duplicative, or otherwise unreasonable.

Plaintiff challenges the fees

incurred in connection with Defendants' successful March 18, 2026, motion to dismiss, arguing that the motion was not overly complex. The court does not find that the requested fees in connection with that motion were unreasonably incurred. Indeed, this was no trivial motion, as it terminated this suit which had been pending more than five years. Defendants were required to put forth evidence to establish that Plaintiffs' delay did not fall within any exception of Section 583.340, which reasonably required extensive analysis of the record, conducting legal research, drafting the memorandum (including detailing the history of the action), and preparing the supporting declaration and exhibits. (See Gold Decl., Ex. N [entries of 3/3/2026–3/18/2026].) The motion was opposed, so Defendants also had to spend time reviewing the opposition to the motion, researching Plaintiffs' authorities, and preparing the reply and evidentiary objections to the declarations filed in support of the opposition. (Id. [4/22/2026–4/24/2026].) Spending roughly twenty hours to research, brief, reply to, and win a dispositive motion ending a five-and-a-half-year case is reasonable.

Plaintiff

also challenges the fees incurred between the first fee motion and the instant fee motion, asserting that the fees are duplicative or excessive. The Court concurs that the time spent on the initial fee motion was excessive. The time records show that counsel spent 19.2 hours on the original fee motion (not including the 8.7 hours billed by the paralegal ("KJD") for preparation of the spreadsheet of time billed and fees incurred). (Gold Decl., Ex. N (6/13/2025-8/5/2025).) The court will accordingly reduce the fees by \$3,150.00 (which is a reduction of 3 hours @ 415/hr. and 3 hours @ 635.00/hr.).

The court also concurs that the

\$7,200 incurred to update the fee motion was excessive or duplicative. The updated motion simply added to the billing entry spreadsheet to include all work conducted from July 2025 through June 2026, and changes to the memorandum to reflect that work. (Id. (5/11/2026-6/2/2026).) These records show over 11.1 hours spent on these edits. The court will accordingly reduce the fees by \$2,580.00 (a 2 hour reduction @ 695/hr. plus 2.1 hour reduction @ 595/hr.).

Plaintiff raises that time spent on

intra-office discussions are unfairly duplicative. Plaintiff does not specifically cite any particular entries. However, upon independent review, the Court concurs that some of the intra-office discussions are excessive, duplicative and/or unreasonable. The Court will reduce the fee award by \$1,289.50.

Defendants support additional reasonable fees incurred in reply for this motion. Defendants incurred and will incur at least \$5,125 in legal fees in connection with the work conducted by their counsel to review Plaintiffs' opposition to the fee motion and prepare the instant reply brief, as well as for their counsel to prepare for and appear at the hearing on the fee motion. (Supp. Gold Decl., ¶¶ 2-4.) The Court finds this requested amount to be reasonable.

Plaintiffs do not object to the request for costs. Therefore, Defendants are entitled to the costs as requested.

Accordingly, the motion is GRANTED.

Fees are awarded in the amount of \$172,592.50, not including the sanctions previously awarded in the amount of \$12,980.00. Costs are awarded in the noticed amount of \$7,240.87.